

26STCV13563 26STCV13563

County: los-angeles

Division: Civil Law and Motion

Department: 512

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Case Number: 26STCV13563 Hearing Date: September 21, 2026 Dept: 512

HEARING DATE: Mon., September 21, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Lopez

v. Ojax Hospice, Inc., et al. COMP.

FILED: 04-28-26

CASE NUMBER: 26STCV13563

NOTICE: OK

PROCEEDINGS: DEMURRER

TO THE COMPLAINT

MOVING PARTY: Defendant

Marilyn Mangabat

RESP. PARTY: Plaintiff Angela Lopez

DEMURRER

(CCP §§ 430.10, et seq.)

TENTATIVE RULING:

Defendant Marilyn Mangabat's Demurrer

is SUSTAINED WITH 30 DAYS' LEAVE TO AMEND as to the second and third causes of action against Mangabat.

Moving party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed on September 3, 2026 ☐ Late ☐ None

REPLY: Filed on September 14, 2026 ☐ Late ☐ None

ANALYSIS:

I.
Background

On April 28, 2026, Plaintiff Angela Lopez ("Plaintiff") filed the instant action against Defendants Ojax Hospice, Inc. ("Ojax"); Lillian Villareal; Marilyn Mangabat; and Estate of Deanette Aguiluz ("Defendants") and Does 1-5, alleging causes of action for Breach of Written Contract, Breach of Oral Contract, Unjust Enrichment, and Declaratory Relief.

On July 15, 2026, Mangabat, proceeding pro se, filed the instant Demurrer (the "Demurrer").

On September 3, 2026, Plaintiff filed an Opposition.

On September 14, 2026, Mangabat, now

represented by counsel, filed a Reply.

III.

Legal

Standard

“As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

A general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. All other grounds listed in Section 430.10, including uncertainty under subdivision (f), are special demurrers.

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245).

II.

Discussion

A. Meet and Confer

Code of Civil Procedure

section 430.41 requires that "[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., § 430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

Here, Mangabat filed a declaration in support of the Demurrer attesting that Mangabat called Plaintiff's counsel's office and sent meet and confer correspondence regarding the issues raised in the Demurrer, but Mangabat and Plaintiff's counsel were unable to adequately meet and confer prior to the instant Demurrer.

Given the circumstances, the Court finds the meet and confer requirement is satisfied.

B. Demurrer

Mangabat demurs to the second and third causes of action on the grounds they fail to plead sufficient facts to state causes of action. Specifically, Mangabat contends that the Complaint fails to plead any facts stating Mangabat personally entered into any contract with Plaintiff, as demonstrated by the plain terms of the written agreement attached to the Complaint.

In Opposition, Plaintiff states the Complaint adequately pleads breach of an oral contract between Mangabat and Plaintiff and, as such, there exists an actual controversy between the parties. Thus, the Demurrer should be overruled as to both the second and third causes of action.

In Reply, Mangabat contends the Opposition fails to adequately rebut the contentions raised in the Demurrer. When reading the Complaint as a whole, Mangabat emphasizes that the Complaint fails to plead any kind of contractual relationship between Plaintiff and Mangabat

personally. Mangabat reiterates arguments raised in the Demurrer and requests the Court sustain the Demurrer without leave to amend.

Cause of Action No. 2 – Breach of Oral
Contract

A cause of action for breach of contract must plead “(1) the contract, (2) plaintiff’s performance or excuse for non-performance, (3) defendant’s breach, and (4) damage to plaintiff therefrom.” (*Acoustics, Inc. v. Trepte Constr. Co.* (1971) 14 Cal.App.3d 887, 913.) A written contract can be pled by alleging its making and attaching a copy to the complaint or by alleging the making and the substance of the relevant terms. (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199.) The terms of an “oral contract may be pleaded generally as to its effect, because it is rarely possible to allege the exact words.” (*Scolinos v. Kolts* (1995) 37 Cal.App.4th 635, 640.) Finally, an implied-in-fact contract can be alleged based on the promisor’s conduct. (*Gomez v. Lincare, Inc.* (2009) 173 Cal.App.4th 508, 525.)

“ ‘Where an agent is duly constituted and names his principal and contracts in his name and does not exceed his authority, the principal is responsible and not the agent.’ [P] This view has been adopted in California. Where the signature as agent and not as a principal appears on the face of the contract, the principal is liable and not the agent. [Citations.]” ‘ ’ ” (*Filippo Industries, Inc. v. Sun Ins. Co.* (1999) 74 Cal.App.4th 1429, 1442.)

Here, the Complaint, in pertinent part, states:

At all pertinent times, VILLAREAL and MANGABAT were senior level managing personnel at OJAX authorized to speak on behalf of the corporation and acting with the full authority and power of the corporation’s owner. Sometime in August 2023, Defendants VILLAREAL and MANGABAT entered into an oral contract with Plaintiff. Under the terms of the oral contract VILLAREAL and MANGABAT stated that all the stock of OJAX would be transferred to Plaintiff if she agreed to work for OJAX for a reasonable time as Administrator and Director of Nursing and Director of Patient Care and Services. In or about

November 2023, Plaintiff went to work at OJAX as Administrator and eventually Director of Nursing and Director of Patient Care and Services. In or about August 2025, VILLAREAL and MANGABAT breached the oral contract by failing to transfer all of the stock of OJAX to Plaintiff. As a sole, direct, and proximate cause of the breach of oral contract. Plaintiff has been damaged in an amount greater than \$200,000.00.

(Compl., ¶¶ 17-23.)

The Court finds these facts fail to plead liability of Mangabat as an individual on the alleged oral contract. While the Court acknowledges the oral contract is separately pled from the claim regarding the written contract that is also attached to the Complaint, the Court finds that the Complaint, as currently pled, does not plead adequate facts demonstrating the oral contract was made on behalf of Mangabat individually. Rather, the Complaint's allegations plead an oral contract entered into by Mangabat as agent to the principal Ojax. (See *Filippo Industries, Inc.*, supra, 74 Cal.App.4th at p. 1442.)

Thus, the Court finds the Complaint fails to state sufficient facts to plead the second cause of action against Mangabat. As such, the Demurrer is SUSTAINED as to the second cause of action.

Cause of Action No. 3 – Declaratory

Relief

A complaint must show a proper subject for declaratory relief and an actual controversy involving justiciable questions relating to the rights or obligations of a party.... Declaratory relief operates prospectively—a remedy ‘to be used in the interests of preventive justice, to declare rights rather than execute them.’ [Citation.] A proper subject includes a declaration of one’s rights and duties under a contract. (§ 1060.) A controversy is ripe when it has reached, but has not passed, the point that the facts sufficiently have congealed to permit the court to issue a useful decision. [Citation.] The purpose of the declaration is to allow the parties to shape their conduct to avoid a breach.... There is no basis for declaratory relief where only past wrongs are involved.

(*Cordoba Corp. v. City of Industry* (2023)

87 Cal.App.5th 145, 156-157.)

Here, the Complaint states that "an actual and justiciable controversy has arisen between Plaintiff and Defendants in that Plaintiff contends she is sole owner of OJAX and Defendants contend Plaintiff has no interest in OJAX. The controversy cannot be resolved without judicial intervention. Plaintiff has sought or is seeking all legal remedies but to no avail and equity may be the only remedy available to Plaintiff. As such Plaintiff seeks a Court declaration that she is sole owner of the stock of OJAX." (Compl., ¶¶ 24-28.)

However, the Court finds, especially in light of the Court's ruling on the second cause of action as to Mangabat, that the Complaint fails to state facts demonstrating an actual controversy exists between Mangabat and Plaintiff. The Complaint fails to allege any facts demonstrating that Mangabat owns OJAX stock or is the individual capable of making Plaintiff the sole owner of OJAX stock.

Thus, the Demurrer is SUSTAINED to the third cause of action so as it applies to Mangabat.

IV.

Conclusion
& Order

For the foregoing reasons, Defendant Marilyn Mangabat's Demurrer is SUSTAINED WITH 30 DAYS' LEAVE TO AMEND as to the second and third causes of action against Mangabat.

Moving party is ordered to give notice.